CHAPTER 586

DATA PROTECTION ACT

AN ACT to repeal and to replace the Data Protection Act, Cap. 440.

28th May, 2018

ACT XX of 2018, as amended by Act XII of 2021 and Legal Notice 212 of 2023.

ARRANGEMENT OF THE ACT

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PART I

Preliminary

Short title.

1. The short title of this Act is the Data Protection Act.

Purpose of the Act.

2. This Act implements and further specifies the relevant provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

Interpretation.

3. (1) In this Act unless the context otherwise requires

"Commissioner" means the Information and Data Protection Commissioner appointed under article 11 and includes any officer or employee of the Commissioner authorised by him in that behalf;

Cap. 258.

"identity document" means a legally valid identity document as provided in the Identity Card and other Identity Documents Act;

"Minister" means the Minister responsible for data protection;

"official statistics" shall mean information collected, analysed and produced for the benefit of the society to characterize collective phenomena in a considered population and produced by the National Statistics Office as provided for by law, or by other national authorities as designated by Eurostat following recommendation by the National Statistics Office;

"the Regulation" means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

"Tribunal" means the Information and Data Protection Appeals Tribunal established under article 24.

(2) The definitions in Article 4 of the Regulation shall apply to this Act.

PART II

Applicability

Scope.

4. (1) Subject to the provisions of sub-article (2), the provisions of this Act shall apply to the processing of personal data, wholly or partly, by automated means and to such processing other than by automated means where such personal data forms part of a

filing system or is intended to form part of a filing system:

Provided that this Act shall not apply to the processing of personal data:

(a) in the course of an activity which falls outside the scope of Union law;

(b) by the Government of Malta when carrying out activities which fall within the scope of Chapter 2 of Title V of the Treaty on European Union;

(c) by a natural person in the course of a purely personal or household activity; or

(d) by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security:

Provided further that the Minister may by regulations, after consultation with the Commissioner and with the concurrence of the Minister responsible for the Police, make provisions on the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security.

(2) This Act shall apply to:

(a) the processing of personal data in the context of the activities of an establishment of a controller or a processor in Malta or in a Maltese Embassy or High Commission abroad, regardless of whether the processing takes place in Malta or not;

(b) the processing of personal data of data subjects who are in Malta by a controller or processor not established in the European Union, where the processing activities are related to:

(i) the offering of goods or services, irrespective of whether a payment of the data subject is required, to such data subjects in Malta; or

(ii) the monitoring of their behaviour in so far as their behaviour takes place within Malta;

(c) the processing of personal data by a controller not established in the Union but in a place where the laws of Malta apply by virtue of public international law.

PART III

Restrictions, Consultation and Prior Authorisation

Restrictions.

5. The Minister may, after consultation with the Commissioner and with the concurrence of the Minister responsible for justice, by regulations provide for a restriction to the obligations to which the data controller or processor is subject pursuant to Article 23 of the Regulation.

Safeguards and derogations relating to processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes.

6. (1) Subject to the provisions of sub-article (4), controllers and processors may derogate from the provisions of Articles 15, 16, 18 and 21 of the Regulation for the processing of personal data for scientific or historical research purposes or official statistics in so far as the exercise of the rights set out in those Articles:

(a) is likely to render impossible or seriously impair the achievement of those purposes; and

(b) the data controller reasonably believes that such derogations are necessary for the fulfilment of those purposes.

(2) Subject to the provisions of sub-article (4), controllers and processors may derogate from the provisions of Articles 15, 16, 18, 19, 20 and 21 of the Regulation for the processing of personal data for archiving purposes in the public interest in so far as the exercise of the rights set out in those Articles:

(a) is likely to render impossible or seriously impair the achievement of those purposes; and

(b) the controller reasonably believes that such derogations are necessary for the fulfilment of those purposes.

(3) Where data processing referred to in sub-articles (1) and (2) serves at the same time another purpose, the derogations shall apply only to processing for the purposes referred to in those sub-articles.

(4) Processing for the purposes referred to in sub-articles (1) and (2) shall be subject to appropriate safeguards for the rights and freedoms of the data subject, including pseudonymisation and other technical and organisational measures to ensure respect for the principle of data minimisation:

Provided that, where such purposes can be fulfilled by processing which does not permit, or no longer permits, the identification of data subjects, those purposes shall be fulfilled in that manner.

Consultation and prior authorisation.

7. A controller shall consult with, and obtain prior authorisation from, the Commissioner where the controller intends to process in the public interest:

(a) genetic data, biometric data or data concerning health for statistical or research purposes; or

(b) special categories of data in relation to the management of social care services and systems, including for the purposes of quality control, management information and the general national supervision and monitoring of such services and systems:

Provided that, where genetic data, biometric data or data concerning health are required to be processed for research purposes, the Commissioner shall consult a research ethics committee or of an institution recognised by the Commissioner for the purposes of this article.

Processing of an identity document.

8. An identity document shall only be processed when such processing is clearly justified having regard to the purpose of the processing and -

(a) the importance of a secure identification; or

(b) any other valid reason as may be provided by law:

Provided that the national identity number or any other identifier of general application shall be used only under appropriate safeguards for the rights and freedoms of the data subject pursuant to the Regulation.

Freedom of expression and information.

9. (1) Personal data processed for the purpose of exercising the right to freedom of expression and information, including processing for journalistic purposes or for the purposes of academic, artistic or literary expression, shall be exempt from compliance with the provisions of the Regulation specified in sub-article (2) where, having regard to the importance of the right of freedom of expression and information in a democratic society, compliance with any of the provisions as specified in sub-article (2) would be incompatible with such processing purposes:

Provided that when reconciling the right to the protection of personal data with the right to freedom of expression and information, the controller shall ensure that the processing is proportionate, necessary and justified for reasons of substantial public interest.

(2) For the purposes of the provisions of sub-article (1), the provisions of the following chapters of the Regulation may be exempted or derogated therefrom pursuant to Article 85(2) of the said

Regulation:

(a) Chapter II (Principles):

(i) Article 5(1)(a) to (e) (principles relating to processing);

(ii) Article 6 (lawfulness);

(iii) Article 7 (conditions for consent);

(iv) Article 10 (data relating to criminal convictions, etc);

(v) Article 11(2) (processing not requiring identification);

(b) Chapter III (rights of the data subject):

(i) Article 13(1) to (3) (personal data collected from data subject: information to be provided);

(ii) Article 14(1) to (4) (personal data collected other than from data subject);

(iii) Article 15(1) to (3) (access to data and safeguards for third country transfers);

(iv) Article 17(1) and (2) (right to erasure);

(v) Article 18(1)(a), (b) and (d) (restriction of processing);

(vi) Article 20(1) and (2) (right to data portability);

(vii) Article 21(1) (objections to processing);

(c) Chapter IV (controller and processor):

(i) Article 25 (data protection by design and by default);

(ii) Article 27 (representatives of controllers or processors not established in the Union);

(iii) Article 30 (records of processing activities);

(iv) Article 33 (notification of personal data breach to supervisory authority);

(v) Article 34 (communication of personal

(d) the extension of the application of this Act to any particular activity or sector and to provide for the manner in which data protection is to be implemented in specific sectors or in respect of specific activities;

(e) for anything that may be prescribed under any of the provisions of this Act or the Regulation;

(f) the cases, other than those referred to in Article 37(1) of the Regulation, where the controller or processor or associations and other bodies representing categories of controllers or processors shall designate a data protection officer;

(g) the establishment of a lower age than sixteen years where the processing of the personal data of a child shall be deemed to be lawful in the absence of consent by the holder of parental responsibility over the child, provided that such lower age is not below thirteen years pursuant the provisions of Article 8(1) of the Regulation;

(h) to amend the Schedules to this Act; and

(i) on any other matter relating to data protection.

Repeal and Savings. Cap. 440.

34. (1) The Data Protection Act, hereinafter referred to as "the repealed Act", is hereby repealed, and any references in any law to the repealed Act shall be construed as references to this Act.

(2) Notwithstanding the provisions of sub-article (1):

(a) the repealed Act shall remain in force for the purpose of any act, decision, action or proceedings taken in respect of any breach of the repealed Act that occurred or were instituted prior to the coming into force of this Act; and

(b) any subsidiary legislation made under the provisions of the repealed Act shall, until other provision is made under or by virtue of this Act, continue in force and have effect as if it was made under this Act.

FIRST SCHEDULE
(Article 17)

Oath of Office

I …… solemnly swear / affirm that I will faithfully and conscientiously perform my duties as (Information and Data Protection Commissioner / Officer of the Information and Data Protection Commissioner / Employee of the Information and Data Protection Commissioner) in terms of the Data Protection Act, the General Data Protection Regulation and in accordance with the laws of Malta, without fear or favour. (So help me God).

SECOND SCHEDULE
(Article 27)

FORM A

Summons of Witnesses

INFORMATION AND DATA PROTECTION APPEALS TRIBUNAL

DATA PROTECTION ACT

In the case.....

versus.....

Application of

Respectfully requests the issue of a summons of a witness in the above-stated cause against the person mentioned hereunder to attend for the hearing at the time stated hereunder, and at any other hearing as may be required, and to bring with him/her any documents referred to hereunder.

Name and address (home or work or e-mail) of the person summoned to attend as a witness:

…….....

……

Documents to be brought by him/her:

……

Date, time and place where he/she is to attend:

……

The said ……is hereby being warned that should he/she fail to attend the sitting without informing the Tribunal of his/her unavailability beforehand, he/she may be compelled to attend by a warrant of escort and shall be liable to all consequences according to the provisions of the Code of Organization and Civil Procedure.

Given by order of the Information and Data Protection Appeals Tribunal.

This, ... day of ..... 20.....